

Court report template

This template should be used as a guideline, with the main section headings retained. Witnesses have differing communication therefore the content of the report will need to reflect individual witness's needs accordingly.

Registered Intermediary Report and Recommendations on Special Measures in respect of [Name of Witness]

Confidential Report

This report is confidential and is intended only for the parties and the court in this case.
It should not be disclosed with any other person without the permission of the court.

This report is for advice only and is not evidence in the case.

CASE NUMBER: XXXXX

CASE NAME: XXXXX

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Appendices

Appendix A Curriculum Vitae of Intermediary

Appendix B, C etc. Any other relevant information not required in the body of the report
e.g. supporting visuals

1. Introduction

The purpose of this report is:

- to indicate whether XX has the ability to communicate in order to give evidence in court; and, if so
- to state whether a Registered Intermediary is likely to improve the quality (completeness, coherence and accuracy) of evidence given by xx; and
- to make recommendations about special measures which may enable the best communication with xx during a trial.

2. Summary of qualifications and experience

I am an Intermediary in accordance with Section 14(1) Criminal Evidence Act 1992. I trained as an Intermediary in 20XX. I completed and passed the Professional Diploma in Intermediary Studies delivered by the University of Limerick (Level 9 Qualification).

My background is X years' experience working with *relevant population(s)*. I work as a *relevant health and social care professional role at place of employment, as relevant*. My full CV is set out in Appendix A.

3. Instructions and chronology

My role as a Registered Intermediary is to assist communication with a witness. I am not instructed as an expert witness. I cannot give an opinion on the accuracy or truthfulness of the evidence XX gives.

My role is limited to providing assistance to facilitate communication before trial and during cross-examination and advising how this can best be achieved

Intermediary assessment was requested by xxxxx is to appear as a witness during a trial and she is a young child / vulnerable witness in a trial and has a diagnosed brain injury / Austim spectrum disorder

CASE NUMBER: XXXXX

CASE NAME: XXXXX

In order to write this report I have:

- Met XX with their parents
- Assessed XX's language and communication skills.
- Read information provided by XX's school.

Timeline:

DATE	EVENT
	Referral accepted from the xx
	Emails and telephone calls with xxx Preparation and planning.
	Assessment of XX's language and communication.

4. Witness Assessment

Include your assessment findings in relation to communication in the context of a trial and cross-examination. This section depends on the communication needs of the witness and could contain some/all of the following headings:

- Background information
- Medical issues that impact communication, attention and listening, understanding of the spoken language, communication (including spoken expression, non-verbal communication, speech sound skills and/or communication aids that are used)
- Reading and writing abilities
- Emotional issues impacting on communication
- Sensory issues impacting on communications
- Other relevant information

5. Summary of conclusions

To include a numbered summary relating to the witness's communication skills in the context of a trial.

6. Recommendations to Facilitate Communication and Understanding

Include all recommendations that will facilitate the witness to understand and communicate to the best of their ability (including those that facilitate emotional regulation if this impacts on communication).

Recommendations should be based on the points assessed in section 4 and need to be based on evidence that has been collected during the assessment. Cross-reference recommendations with assessment findings wherever possible.

Declaration:

I (intermediary name), declare that the above is a thorough assessment of xxxx 's communication needs. All relevant factors and information have been taken into account and the recommendations are based on my professional experience

I solemnly, sincerely and truly declare that I will well and faithfully communicate questions and answers and make a true explanation of all matters and things as shall be required of me according to the best of my skill and understanding.

Signed: xxxxx

Date: